

disposizione i dati richiesti, con la precisazione che, in caso di comunicazione, sarebbero stati forniti solo i dati pertinenti e necessari per l'esercizio del diritto di difesa, nel rispetto della normativa vigente in materia di protezione dei dati personali" (nota cit., p. 3);

d. "In data 2/3/2021, il reclamante ha reiterato la richiesta di accesso ai dati, specificando che la comunicazione dei dati potesse avvenire anche estraendo informazioni non pregiudizievoli per la riservatezza di terzi. La Società ha confermato la disponibilità a fornire i dati richiesti, ma ha ribadito la necessità di rispettare i diritti di terzi e la normativa sulla protezione dei dati" (nota cit., p. 4).

3. Le conclusioni.

Alla luce di quanto esposto, il Garante per la protezione dei dati personali, in base alle proprie competenze e alle disposizioni di legge vigenti, ha ritenuto di dover adottare il seguente provvedimento.

DELIBERA

1. Di dichiarare infondato il reclamo presentato dal Sig. XX nei confronti di AcegasApsAmga S.p.A. in merito al presunto mancato rispetto del diritto di accesso ai dati personali.

2. Di disporre che la Società continui a garantire il rispetto delle normative vigenti in materia di protezione dei dati personali, in particolare per quanto riguarda il diritto di accesso e la comunicazione dei dati personali.

3. Di comunicare il presente provvedimento al reclamante e alla Società.

Così deciso in Roma, il 6 luglio 2023.

IL PRESIDENTE

Prof. Pasquale Stanzione

the documentation, prior identification by the same" (cited note, p. 2);

d. in response to the subsequent request submitted by the claimant on 02/03/2021, "Given the persistent generality of the request, the Company reiterated the necessity of receiving a precise identification of the requested information, renewing the availability to conduct an oral hearing" (cited note, p. 2);

e. "On 04/03/2021, the Claimant fully detailed his requests, specifically asking: - "to be able to access [...] the company computer he used during the period subject to your investigations (1st December 2020 – 18th January 2021) and until the sending of the letter of contestation"; - "to receive, in any case, in paper form or on a USB stick, a copy of all electronic correspondence sent, received, and archived by him, along with the relevant attachments, during the same period"; - "to receive clarification on the duration and spatial/temporal placement of the individual activities allegedly not work-related attributed to him by the Company, along with a description of the same"; - "to know what the average number of Work Orders entered by Colleagues would be and what the number of his orders is, allegedly significantly lower." (Attachment 8: request from [claimant] dated 04/03/2021). The claimant also added that "This reorganizes and clarifies my previous communications on the subject, to be understood as consequently replaced for all intents and purposes" (cited note, p. 3);

f. "The Company then proceeded to provide a timely response to the [claimant], following up on each request with communication dated 09/03/2021" (cited note, p. 3);

g. "The factual reconstruction [...], and the further clarifications presented here, testify that the Company has shaped its behavior according to the principles established by Articles 12 and 15 of the Regulation, providing the Claimant with timely and exhaustive feedback. In particular, the first request, although general, from the interested party was sent on 22/02/2021 and complete access, including physical access, to his data, despite the generality of the requests, occurred on 10/03/2021" (cited note, p. 6);

h. the Company "has mandated an investigation firm for a specific visual assessment aimed at verifying behaviors constituting unlawful conduct. Regarding the legality and correctness of the processing, it is highlighted that, based on the consolidated orientation in the matter, the employer has the possibility to appoint an external subject responsible for the investigative activity aimed at protecting and defending its interests, with the sole limit of the impossibility of encroaching on a generalized surveillance of the actual work activity" (cited note, p. 6);

i. "As for compliance with the principles of proportionality and data minimization, the information provided by the Institute was used by the Company solely for the purposes of the disciplinary contestation and the subsequent judicial proceedings and was explicitly detailed to the Claimant; no extraneous or irrelevant data for the same purposes were reported" (cited note, p. 7).

In response to a request for further information and clarifications, the Company, in a note dated 9 February 2023, subsequently stated that:

a. "the identification of the exact extent of the right of access formulated by the interested party was the result of discussions with the interested party himself, culminating in his clarification, formulated in the communication dated 04/03/2021 [...]. Following this clarification, which according to the same words of the interested party "reorganizes and clarifies the previous communications of the undersigned on the subject, to be understood as consequently replaced for all intents and purposes," the Company proceeded to provide complete feedback on what was thus requested" (note 9/2/2023, p. 2);

b. "The Company, moreover, could have invoked, in this context, the exception referred to in Article 2-undecies of the Privacy Code, according to which the rights referred to in Articles 15 to 22 of the GDPR cannot be exercised if they may result in actual and concrete harm 'to the conduct of defensive investigations or to the exercise of a right in court,' notifying the interested party accordingly" (cited note, p. 2);

c. "However, having assessed that the reference to the investigative report was outside the scope of the request, such communication was not provided to the [claimant]" (cited note, p. 2);

d. "The charge of misconduct was nonetheless drafted in such a way as to allow the worker to prepare an adequate defense regarding the contested facts" (cited note, p. 2).

3. The initiation of the procedure for the adoption of corrective measures and the Company's deductions.

On 13 April 2023, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles 5, paragraph 1, letter a), 12, and 15 of the Regulation, pursuant to Article 166, paragraph 5, of the Code.

With defensive memoranda sent on 11 May 2023, the Company, after clarifying that "there was only a gradual acquisition of awareness [...] regarding the nature and scope of the request made by the [claimant] and, consequently, what the key steps were that led the Company to make internal assessments that [...] were based on the incorrect interpretation of the request itself," represented that:

1. "the various requests of the claimant arrived at email to different addresses (first to ordinary mail addresses, then to PEC addresses) during the course of a delicate and complex disciplinary procedure which, as is customary, involved in the front line the sectors and offices of Acegas dedicated to personnel management and, by their nature, essentially focused on labor law profiles" (note 11/5/2023, p. 2);

2. "the same failure to apply Article 2-undecies of Legislative Decree No. 196/2003 (introduced by Legislative Decree No. 101/2018) – which, as is known, provides the possibility for the data controller to limit, in certain specific cases, the exercise of the right of access by the data subject, subject to the fulfillment of certain informational obligations through a motivated communication made without delay – confirms, albeit in a contrary manner, the error of perspective in which Acegas has fallen" (note cited, p. 3);

3. "The ordinary process of incoming communications to the [Company] is managed through the Protocol Office, with an automated and therefore traceable process. In particular, regarding the exercise of access rights, the notifications indicate email contact addresses also monitored by the Protocol Office" (note cited, p. 4);

4. "In the case of the [claimant], the first request of February 25, 2021, was sent to an address different from those indicated in the notification and assigned by the Protocol only to the competent functions (dedicated to personnel management), which managed it with repeated interactions with the claimant, culminating in the communication dated 04.03.2021 in which the [claimant] specified that this: 'reorganizes and clarifies the previous communications of the undersigned on the subject, to be

understood consequently replaced for all intents and purposes” (note cited, p. 4);

5. regarding the elements to be considered pursuant to Article 83, paragraph 2, of the Regulation, it was represented that: “the Company did not intend to deny outright the exercise of the right of access by the [claimant]”; “As for the seriousness of the contested violation, [...] it concerned the access request of a single interested party (the claimant) and, in substance, according to the Court of Trieste, did not harm the right of defense [of the same]”; “the contested violation is attributable to negligent conduct”; the Company “recognizing in general that need to improve the response process to the rights of the data subjects indicated by the underlying matter, has proceeded to conduct further and specific training sessions”; “the Company, in order to constantly improve its operations for the benefit of the data subjects, is about to adopt further corrective measures”; the Company has activated “to ensure the maximum degree of possible cooperation to any request for clarifications or explanations regarding the matter in question”; “The matter essentially concerned personal data referred to as ‘common’ contained in the Investigative Report, including photographic images and position detected visually”; “The Company has never been the recipient of Orders pursuant to Article 58 paragraph 2 of the Regulation”; “the aforementioned circumstances relating to the actions taken by the data controller (both before and during the procedure before the Authority), to the collaboration with the Authority during the procedure, and to the absence of previous violations for the same case (along with the fact that the case refers to a single interested party) could allow the case in question to be framed as a ‘minor violation’, pursuant to Article 83, paragraph 2 and Recital 148 of the Regulation, consistent with what was concluded by Your Excellency Authority in its GPDP Provision of November 25, 2021 [9731887]” (note cited, pp. 5, 6, 7, 8, 9, and 11).

4. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

4.1. The reconstruction of the facts.

Following the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations related to the claimant that are not compliant with the regulations on personal data protection.

In this regard, it is highlighted that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code “Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor.”

In substance, it emerged that the Company sent the claimant, on February 22, 2021, a disciplinary notice containing, among other things, specific references to activities other than the performance of work activities carried out by the claimant himself between December 1, 2020, and January 18, 2021, after having certified his presence in service by means of clocking in (Doc. 2, complaint 15/11/2021).

The specific references to the claimant's activities contained in the disciplinary notice were drawn from the investigative report, drafted on January 25, 2021, by the “Privacy Investigative Agency,” commissioned by the Company on November 23, 2020.

On February 25, 2021, the claimant sent the Company, via email, the request, related to the aforementioned disciplinary notice, “in order to exercise his right of defense,” for “access to his data concerning the facts and behaviors allegedly irregular indicated in the...

"Letter of contestation of charges" (Doc. 3, cited complaint).

On the same date, the Company provided the complainant with a response via a letter titled: "Request for access to the Company personal computer," in which it was communicated that "your request for access to the company computer cannot be accepted, also due to the precautionary suspension measure imposed against you with the disciplinary notice of 22/02/2021, our letter prot. no. 197/2021. However, we inform you of our willingness to make available to you, in the forms deemed most appropriate, the documentation that you wish to specify in detail by March 5 of this year." (Doc. 4, cited complaint).

In a subsequent email dated March 2, 2021, the complainant reiterated the previous request to the Company in the following terms: "With reference to your letter of 26/2 last, I must clarify that in my letter of 25.2 last, I did not request access to the company computer but to access the data concerning the facts and behaviors allegedly irregular that have been charged against me and therefore all the documentation you used to raise the charges against me. I therefore renew the request that you may fulfill, possibly also extracting from the documentation data and names if prejudicial to the privacy rights of third parties." (Doc. 5, cited complaint).

In response to such requests, the Company, in a communication dated April 3, 2021, stated, among other things, that "In any case, you, contrary to what was requested by us, did not specify the specific documentation you were requesting to be exhibited for defensive purposes; your generic requests for the exhibition of 'all the documentation used to raise the disciplinary charge' cannot be accepted." (Annex 7, note from the Company 19/4/2022).

After receiving this correspondence, the complainant, in an email dated March 4, 2021, specified, as per the Company's request, the subject of the request in the following terms: "to be able to access [...] the company computer [...] used during the period subject to your investigations (December 1, 2020 – January 18, 2021) and until the sending of the letter of charges; - to receive, in any case, in paper form or on a USB stick, a copy of all electronic correspondence sent, received, and archived by him, along with the relevant attachments, during the same period; - to receive clarification on the duration and spatial/temporal placement of the individual activities allegedly not work-related charged against him by the Company, along with a description of the same; - to know what the average number of Work Orders entered by Colleagues would be and what the number of his orders is, allegedly significantly lower."

From the documents acquired during the investigation, it emerges that, in response to a request for "access to data" related to the complainant and in particular to the disciplinary charges raised by the Company in the letter of February 25, 2021, the Company initially unilaterally qualified this request as "access to the Company personal computer," deeming it, moreover, not acceptable, while inviting the interested party to specify "in detail" the "documentation" subject to the request.

Even following the complainant's clarification regarding the subject of the request ("I did not request access to the company computer but to access the data concerning the facts and behaviors allegedly irregular that have been charged against me and therefore all the documentation you used to raise the charges against me"), the Company insisted on its position and defined the requests "for the exhibition of 'all the documentation used to raise the disciplinary charge'" as "generic," concluding that these "cannot be accepted."

In response to the Company's request to "detail" the access request, the complainant sent the note of March 4, 2021, summarized above. In any case, it is noted that even with this third request, the complainant asked the Company to clarify the specific aspects of his conduct subject to the disciplinary charge ("to receive clarification on the duration and spatial/temporal placement of the individual activities allegedly not work-related charged against him by the Company, along with a description of the same").

Finally, it emerged that, as represented by the interested party in the integration sent to the Authority on March 8, 2022, the existence and content of the investigative report were known to the complainant (who also obtained a copy) only at the time of the Company's constitution in the appeal against the dismissal proposed by the complainant himself before the competent judicial authority (with a memorandum dated 4/1/2022).

Regarding the treatment commissioned to the investigative agency on November 23, 2020, the investigation did not reveal any evidence of violations of the regulations on the protection of personal data.

4.2. Violation of Articles 5, paragraph 1, letter a), 12, and 15 of the Regulation.

It is noted, preliminarily, that, contrary to what was asserted by the Company during the proceedings, in the appeal presented before the ordinary judicial authority for the challenge of the dismissal, the complainant did not raise "the same objections and arguments regarding the processing of his personal data carried out by the Company now subject to the Complaint."

In fact, the appeal, regarding the specific point, raised the violation of Article 7, Law 20/5/1970, no. 300

concerning the alleged "genericity of the charge" and "failure to deliver."

of the information on which the disciplinary contestation was based, resulting in a violation of the right to defense, without any reference to the right of access to one's personal data and the regulation on personal data protection (points 1 and 3, appeal pursuant to art. 1 co. 48 L. 28.6.2012 N. 92, filed on 2/12/2021; Annex 1 regularization note 13/1/2022).

On the merits, it is first believed that the requests for access to one's data made by the complainant can be classified as the exercise of the right of access guaranteed by art. 15 of the Regulation, even though this specific provision was not expressly referenced (on this point, see the Guidelines 01/2022 on data subject rights - Right of access, EDPB, March 28, 2023, 3.1.1, n. 47: "Data subjects are not required to specify the legal basis in their request"; "Gli interessati non sono tenuti a specificare la base giuridica nella loro richiesta", unofficial translation). This is considered given that the content of the requests clearly indicates that the complainant wanted access to data concerning them.

That said, it is noted, first of all, that it is not in compliance with what is established by the aforementioned art. 15 to subordinate the response to the access request to the detailed indication by the data subject of the "documents" to which access is requested, as instead proposed by the Company in the responses of 25/2 and 3/4/2022.

Moreover, the complainant's request was anything but generic, referring expressly to all data used to carry out the disciplinary contestation. On this point, the aforementioned Guidelines 01/2022 on data subject rights - Right of access, have stated that the request for access to data generally concerns all data held by the controller and that the latter may have doubts about the content of the request only if it has been formulated in extremely generic terms (see in particular par. 2.3.1, n. 35: "Data subjects have the right to obtain, with the exceptions mentioned below, full disclosure of all data relating to them [...]. Unless explicitly requested otherwise by the data subject, a request to exercise the right of access shall be understood in general terms, encompassing all personal data concerning the data subject"; "Gli interessati hanno il diritto di ottenere, con le eccezioni di seguito indicate, la piena divulgazione di tutti i dati che li riguardano [...]. Salvo diversa richiesta esplicita dell'interessato, la richiesta di esercitare il diritto di accesso è intesa in termini generali, comprendendo tutti i dati personali che lo riguardano", unofficial translation; among the exceptions, the Guidelines, n. 35 cited, mention cases where "the data controller processes a large quantity of data concerning the data subject" and the "request for access [has been] expressed in very general terms", unofficial translation: "In situations where the controller processes a large quantity of data concerning the data subject, the controller may have doubts if a request of access, that is expressed in very general terms, really aims at receiving information on all kind of data being processed or on all branches of activity of the controller in detail").

The aforementioned art. 15 of the Regulation, regarding the subject matter of the right of access, clarifies that this also includes "categories of personal data" as well as "where the data have not been collected from the data subject, all information available on their origin" (see art. 15, par. 1, lett. b) and g) of the Regulation).

Therefore, the Company, in responding to the complainant's requests, should have provided all the data collected with the investigative report of 25/1/2021, considering that it also contains categories of data relating to the complainant (photographs, a GPS survey, descriptions of places, people, and situations: see the cited investigative report, pp. 7 to 10) that were not transferred into the disciplinary contestation.

Furthermore, as already noted, art. 15 provides that if the data are not collected directly from the data subject (as in this case), the data controller must indicate their origin. This information was also not provided in the response to the access request.

Regarding the modalities of the response that the data controller must provide following the request for the exercise of rights by the data subject, art. 12 prescribes that the controller "facilitates the exercise of rights" and provides "the information regarding the action taken [...] without undue delay and, in any case, no later than one month from the receipt of the request." Furthermore, "if the controller does not comply with the request of the data subject, the controller informs the data subject without delay [...] of

the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy.”

Therefore, the circumstance, represented in the defense memoranda, that the first request for access by the complainant was “sent to an address different from those indicated in the notice,” cannot be taken into consideration regarding this aspect, especially since the personnel management subjects, upon receiving the request, proceeded to provide a response without – at least – forwarding the request to the addresses indicated in the notice.

In any case, it is noted on this point that the aforementioned Guidelines 01/2022 on data subject rights - Right of access have clarified that “the GDPR does not impose any requirement on data subjects regarding the form of the request for access to personal data. Therefore, there are, in principle, no requirements under the GDPR that data subjects...

****1. Introduction****

The GDPR does not impose any requirements on data subjects regarding the form of the request for access to the personal data. Therefore, there are, in principle, no requirements under the GDPR that the data subjects must observe when choosing a communication channel through which they enter into contact with the controller.

****2. Compliance with Article 2-undecies of the Code****

Furthermore, even if the Company had deemed that, in the specific case, one of the concrete conditions provided for by Article 2-undecies of the Code applied, it would have had to communicate this to the data subject with a reasoned response. The conduct of the Company, in response to the requests of the complainant, also does not appear to be compliant with the principle of fairness of processing, which constitutes one of the general principles in the matter, particularly with regard to the employment relationship (Article 5, paragraph 1, letter a) of the Regulation), since the controller did not indicate the specific origin of the data used for the disciplinary contestation nor did it represent the existence of a concrete prejudice to the exercise of its own right.

****3. Non-compliance with the Regulation****

The Company, therefore, in the terms described above, did not comply with the obligation to provide feedback to the data subject following the exercise of one of the rights provided for by the Regulation - in this case, the right of access pursuant to Article 15 - within the terms and in the manner prescribed by Article 12 of the Regulation. The conduct also occurred in violation of the general principle of fairness established by Article 5, paragraph 1, letter a) of the Regulation.

****4. Conclusions: Declaration of Illegality of Processing. Corrective Measures pursuant to Article 58, paragraph 2, Regulation.****

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. The processing of personal data carried out by the Company, and specifically the inadequate response to the access requests made by the complainant, is indeed unlawful, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a), 12, and 15 of the Regulation.

The violation established in the terms of the reasoning cannot be considered "minor," taking into account the nature of the violation concerning the exercise of the rights of the data subject, the seriousness and duration of the violation itself (considering that the complainant became aware of the existence of the investigative report only during the judicial appeal procedure against the dismissal), the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

Furthermore, contrary to what was established by the Garante with the provision of November 25,

2021, doc. web No. 9731887, referenced in the defense briefs, in this case, there was no adherence to the requests of the data subject during the procedure before the Authority since the procedure itself was initiated after the complainant had learned that their data had been collected by an investigative agency.

It is recalled that pursuant to Article 160-bis of the Code, "The validity, effectiveness, and usability in judicial proceedings of acts, documents, and provisions based on the processing of personal data not in compliance with legal or regulatory provisions remain governed by the relevant procedural provisions."

Therefore, in light of the corrective powers attributed by Article 58, paragraph 2 of the Regulation, an administrative pecuniary sanction is imposed pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

****5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

As a result of the procedure, it appears that AcegasApsAmga S.p.A. has violated Articles 5, paragraph 1, letter a), 12, and 15 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, letters a) and b) of the Regulation is foreseen, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981).

It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation, which states that "If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

- a) In relation to the nature, severity, and duration of the violation, the nature of the violation concerning the exercise of the rights of the data subject has been deemed relevant, as well as the duration of the violation itself, which lasted for approximately one year;
- b) With reference to the intentional or negligent nature of the violation and the degree of responsibility of the data controller, the conduct of the company and its degree of responsibility have been taken into account, as it did not comply with the regulations regarding data protection in relation to multiple provisions;
- c) In favor of the Company, consideration has been given to its cooperation with the Supervisory Authority, the fact that the established violation concerned only the complainant, and the adoption of measures aimed at facilitating the response to requests for the exercise of the rights of data subjects. It is also considered that the following factors are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and deterrence to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation): primarily, the economic conditions of the offender, determined based on the revenues obtained by the Company in relation to the ordinary financial statements for the year 2022. Finally, the amount of sanctions imposed in similar cases is taken into account.

In light of the above elements and the assessments made, it is deemed appropriate, in this specific case, to apply an administrative sanction against AcegasApsAmga S.p.A. in the amount of €10,000 (ten thousand).

In this context, it is also considered, in view of the type of violations established that concerned the exercise of the rights of the data subject, that pursuant to Article 166, paragraph 7, of the Code and

Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website should proceed.

It is also considered that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

finds the unlawfulness of the processing carried out by AcegasApsAmga S.p.A., represented by its legal representative, with registered office at Via del Teatro, 5, Trieste (TS), Tax Code 00930530324, pursuant to Article 143 of the Code, for the violation of Articles 5 paragraph 1 letter a), 12, and 15 of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, AcegasApsAmga S.p.A. to pay the sum of €10,000 (ten thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

REQUIRES

therefore the same Company to pay the aforementioned sum of €10,000 (ten thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981. It is reminded that the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

DISPOSES

the publication of this provision on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, against this provision an appeal may be made to the ordinary judicial authority, with a petition filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, July 6, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei